

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Garfield	Team: Squad #10	CCRB Case #: 202100042	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/18/2020 10:00 AM	Location of Incident: Cross Island Parkway (Southbound) and 114th Drive		18 Mo. SOL 5/18/2022		Precinct: 105
Date/Time CV Reported Fri, 01/01/2021 4:02 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 01/01/2021 4:02 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Rachid Benlhossain	21282	945504	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A . PO Rachid Benlhossain	Abuse: Police Officer Rachid Benlhossain searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated

Case Summary

On January 1, 2020, § 87(2)(b) filed this complaint via the CCRB website. On December 2, 2021, this complaint was reassigned from Inv. Bryan to Inv. Garfield.

On November 18, 2020, at approximately 10:00 a.m., at the corner of Cross Island Parkway and 114th Drive in Queens, § 87(2)(b) (who was with his wife, § 87(2)(b) and their two children) was pulled over by PO Rachid Benlhousain of Highway 03. PO Benlhousain issued § 87(2)(b) a summons for speeding. Following a conversation with § 87(2)(b) PO Benlhousain stated he was going to issue § 87(2)(b) another summons and reached inside § 87(2)(b)'s vehicle a second time (**Allegation A – Abuse of Authority – Search of Vehicle, substantiated**). § 87(2)(b) then drove away in his vehicle.

§ 87(2)(b) was issued summons # § 87(2)(b) for speeding (**BR 13**) and was arrested the following day for a § 87(2)(b) (**BR 14**).

There is BWC footage from PO Benlhousain (**BRs 05, 06**) as well as dashcam footage from PO Benlhousain's vehicle (**BRs 11, 12**). § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Rachid Benlhousain searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) provided an intake (**BR 01**) and phone (**BR 02**) statement to the CCRB in which he consistently stated that he was driving with his wife, § 87(2)(b) and two kids when he was pulled over by PO Benlhousain. PO Benlhousain took § 87(2)(b)'s information, went back to his police vehicle, and returned with a summons for speeding. After PO Benlhousain issued § 87(2)(b) a summons for speeding, § 87(2)(b) said he asked PO Benlhousain how fast he drives in his car, which he believed PO Benlhousain became upset by. § 87(2)(b) consistently stated that he began to roll up his window when PO Benlhousain stuck his arm inside the vehicle because he wanted the first summons back so he could issue § 87(2)(b) another summons for a higher speed. PO Benlhousain eventually removed his arm from the window and § 87(2)(b) drove away.

In his phone statement, § 87(2)(b) explained that when PO Benlhousain issued the first summons, he stuck his hands inside § 87(2)(b)'s window to hand him the summons and explain what he needed to do with it by pointing out the directions listed on the summons. § 87(2)(b) stated that once he took the summons from PO Benlhousain's hands he removed his hands from § 87(2)(b)'s window.

§ 87(2)(g)

PO Benlhousain was interviewed (**BR 04**). § 87(2)(g) He said § 87(2)(b) responded to the first summons by "using profanity," so he told § 87(2)(b) that he was not free to leave and that he was going to issue him a summons for the higher speed he had recorded § 87(2)(b) driving. § 87(2)(b) raised the window while PO Benlhousain's right arm was still inside the car from explaining the first summons to § 87(2)(b). As a result of the window closing on his arm, PO Benlhousain went to the hospital for "excruciating pain" in his right elbow, though he did not receive any medical treatment or medication and was released that same day. He was offered the chance to have his arm x-rayed but refused because he thought it would be too much effort.

In PO Benlhousain's BWC (**BR 05, 06**), at 10:49, PO Benlhousain sticks his right hand inside the car through the driver's window and explains the details of the summons to § 87(2)(b). The driver's seat window is halfway down. At 11:15, PO Benlhousain removes his arm from § 87(2)(b).

§ 87(2)(b)'s window. At 11:50, PO Benlhousain says, "Let me have that license" and reaches his whole hand and part of his forearm into the car. § 87(2)(b) puts the window up, but it is unclear if there is room for PO Benlhousain to remove his hand. He says § 87(2)(b) is hurting his arm and reminds him that he is being recorded. He repeatedly demands § 87(2)(b)'s license, says § 87(2)(b) has his arm stuck in the window.

PO Benlhousain's dashcam footage (**BRs 11, 12**) show PO Benlhousain sticking his arm in § 87(2)(b)'s window at 11:24, removing it at 11:52, and sticking his arm in a second time at around 12:27.

§ 87(2)(g)

According to People v. Hernandez, 238 A.D.2d 131, an officer breaching the plane of the car doorway with his body or arm to reach inside the vehicle constitutes a search of a vehicle. There must be probable cause that a vehicle contains contraband, weapons, or evidence of a crime to justify a warrantless search of a vehicle (**BR 07**).

§ 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation A** be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB in which § 87(2)(b) is a party (**BR 08**).
- PO Benlhousain has been a member of service for fourteen years and has been listed as a subject in six cases and eight allegations, two of which were substantiated.
 - 201700742 involved an allegation of gun pointed, which was unfounded, and an allegation of gun drawn and seizure of property, both of which were substantiated. PO Benlhousain received formalized training as a penalty.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On February 3, 2022, a FOIL request was submitted to the Office of the Comptroller for any Notice of Claim submitted regarding this incident and will be added to the case file upon receipt (**BR 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: Carter Garfield Inv. Garfield 2/7/22
Signature Print Title & Name Date

Squad Leader: Eric Rigie IM Eric Rigie 2/8/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date